

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HENRY XING NING WU,

Petitioner

VS.

JUAN ZHANG,

Respondent

) Case Number: FMS-26-387624

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: QUASH SERVICE OF SUMMONS, ETC. (SPECIAL APPEARANCE)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Henry Xing Ning Wu (Father) and Respondent Juan Zhang (Mother).
- 2) They share one minor child: Zephyr (DOB: 11/20/23). Father resides in San Francisco and Mother resides in Singapore with the minor child.
- 3) On 3/6/26, Father filed a Petition for Custody and Support of Minor Children (and attached Declaration Under UCCJEA).
- 4) On 3/6/26, Father filed a Request for Order seeking child custody and visitation, spousal support, child support, and attorney's fees and costs.
- 5) On 4/21/26, Father filed a Proof of Service of Summons indicating Mother was served with the Summons, Petition for Custody and Support of Minor Children (and attached Declaration Under UCCJEA), and Request for Order filed 5/6/26 by personal service on 4/1/26.
- 6) On 5/5/26, Mother, specially appearing, filed a Motion to Quash the service of the Summons, Petition for Custody and Support of Minor Children (and attached Declaration Under UCCJEA),

1 and Request for Order filed 5/6/26. Mother states she was never personally served with any
2 documents in this case at any time.

3 7) On 5/5/26, Mother filed a Memorandum of Points and Authorities stating Father did not
4 effectuate service through the Hague Convention's Central Authority, which is the exclusive
5 method of service permitted in Singapore.

6 8) On 6/3/26, Father filed a Responsive Declaration in opposition to Mother's Motion to Quash.
7 Father asserts Mother was personally served pursuant to the Proof of Service filed 4/21/26.

8 9) On 6/18/26, Mother filed a Reply Declaration reiterating her position that service was
9 noncompliant with the Hague Convention.

10 **B. Findings and Order**

11 1) Failure to effectuate service of process upon a citizen of a country signatory to the Hague Service
12 Convention (Hague Convention) in accordance with the procedures set forth in the Hague
13 Convention renders service void. See Code of Civil Procedure section 413.10(c) and California
14 Rules of Court, rule 5.68(a)(5)(A).

15 2) Singapore is a signatory to the Hague Convention and requires service through the Hague
16 Convention's Central Authority.

17 3) Father's Proof of Personal Service does not comply with his requirement.

18 4) Accordingly, Mother's Motion to Quash the service of the Summons, Petition for Custody and
19 Support of Minor Children (and attached Declaration Under UCCJEA), and Request for Order
20 filed 5/6/26 is GRANTED.

21 5) Counsel for Mother shall prepare the Findings and Order After Hearing

22 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
23 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
24 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
25 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
26 proposed order after hearing directly to the court. Failure to submit the order after hearing within
27 10 days may allow the other party to prepare a proposed order and submit it to the court in
28 accordance with CA Rules of Court, Rule 5.125(d).
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